

Om Prakash v. State of U.P. & Others

Allahabad High Court · Division Bench · 21 February 2011 · WRIT - C No. 9637 of 2011 · **Writ petition disposed of; petitioner permitted to withdraw and approach the Consumer Grievance Redressal Forum under Clause 7.10**

HEADNOTE

A consumer's grievance regarding an electricity bill, pending before a District Consumer Forum, is properly routed instead through the Consumer Grievance Redressal Forum and Ombudsman mechanism under Clause 7.10 of the U.P. Electricity Supply Code, 2005 (read with the UPERC (Consumer Grievance Redressal Forum and Ombudsman) Regulations, 2003) — a licensee-specific, two-tier grievance-redressal structure (Forum, then Ombudsman) distinct from the general consumer-protection forum. The petitioner may withdraw a pending District Consumer Forum complaint and instead invoke Clause 7.10, with the licensee/authority directed to decide the grievance expeditiously (within a fixed timeline) once approached.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::7.10

A billing grievance pending before the District Consumer Forum should instead be routed through the licensee's Consumer Grievance Redressal Forum and, if unresolved, the Ombudsman under Clause 7.10

QUESTION

Is the District Consumer Forum (under the general consumer protection framework) the appropriate forum for an electricity billing grievance, or must the consumer instead invoke the Clause 7.10 Consumer Grievance Redressal Forum/Ombudsman mechanism?

HOLDING

The petitioner was permitted to withdraw his writ petition and his pending District Consumer Forum complaint in order to approach the Consumer Grievance Redressal Forum under Clause 7.10 of the Supply Code; the concerned authority was directed to decide the grievance, if presented within 15 days, as expeditiously as possible and not later than 8 weeks from presentation of a certified copy of the order. ¶ [unnumbered order](#)

LIMITING FACTS

The petitioner's billing grievance had been pending before the District Consumer Forum since 30.10.2010 without decision; the licensee objected to that forum's maintainability, urging the Clause 7.10 route instead.

PRINCIPLE TAGS

clause-7.10-forum-ombudsman-route-for-billing-grievances Billing grievances against a licensee are to be routed through the Clause 7.10 Consumer Grievance Redressal Forum (and Ombudsman on appeal), a specific licensee-grievance mechanism distinct from and preferred over the general District Consumer Forum route — reinforcing the s.42(5)/(6)-equivalent individual-grievance routing principle already tracked in this corpus (SCJ-076, *MERC v. Reliance Energy*). ¶ [unnumbered order](#)

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE PETITIONER'S ELECTRICITY-BILL GRIEVANCE

Not decided; left to the Clause 7.10 Consumer Grievance Redressal Forum/Ombudsman process. ¶ [unnumbered order](#)